

Marri Viswa Kumari vs Marri Suresh Kumar on 25 September, 2025

APHC010273382025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

THURSDAY, THE TWENTY FIFTH DAY OF SEPTEMBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 220/2025

Between:

Marri Viswa Kumari

...PETITIONER

AND

Marri Suresh Kumar

...RESPONDENT

Counsel for the Petitioner:

1. KONA N.D.V.RAMANA RAO

Counsel for the Respondent:

1.

The Court made the following:

ORDER:

Today when the matter is taken up for hearing, Sri Kona N.D.V. Raman Rao, learned counsel for the petitioner is present through virtual hearing. As per the endorsement of the Registry, the registered notice sent to the respondent was served on him on 04.09.2025. Therefore, service held sufficient. But, none appeared for the respondent.

2. The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking to withdraw H.M.O.P.No.9 of 2025, on the file of the Senior Civil Judge at Bobbili and transfer the same to the Senior Civil Judge, Kakinada.

3. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and their marriage has been performed at Kakinada on 11.12.2010, as per Hindu rights and customs. In view of the matrimonial disputes between both the parties, the petitioner/wife along with her daughter aged about 12 years are staying at her parents' house at Pratapnagar, Kakinada and depending upon the mercy of her parents. The petitioner pleaded that she had lodged a complaint before the Disha Urban Police Station, Guntur, under Section 498-A r/w 34 IPC and under Sections 3 & 4 of the Dowry Prohibition Act vide Cr.No.76 of 2018 against the respondent/husband and the same is pending for investigation. The petitioner further pleaded that she had filed a Maintenance Case vide M.C.No.12 of 2021, on the file of the II Additional Judicial First Class Magistrate, Kakinada and the respondent/husband is attending the Court proceedings before the competent Court at Kakinada. The learned counsel for the petitioner would contend that to cause inconvenience to the petitioner, the respondent/husband filed H.M.O.P.No.9 of 2025, on the file of the Senior Civil Judge at Bobbili, under Section 9 of the Hindu Marriage Act, 1955, seeking for restitution of conjugal rights.

II. Learned counsel for the petitioner further contended that the petitioner being a woman having a daughter aged about 12 years, depending upon the mercy of her parents, it is very difficult for the petitioner/wife to travel at a distance of approximately more than 250 Kms from Kakinada to Bobbili for attending the Court proceedings before the learned Senior Civil Judge at Bobbili, without any male support and that she was constrained to file the present petition against the respondent/husband seeking to withdraw H.M.O.P.No.9 of 2025, on the file of the Senior Civil Judge at Bobbili and transfer the same to the Senior Civil Judge, Kakinada.

4. Heard Sri Kona N.D.V. Raman Rao, learned counsel for the petitioner, through virtual hearing. Though the registered notice sent by the Registry has been served on the respondent, none appeared for the respondent. Perused the material available on record.

5. The material on record prima facie goes to show that in view of the matrimonial disputes between both the parties, the petitioner/wife along with her daughter aged about 12 years are staying at her parents' house at Pratapnagar, Kakinada and she had filed a Criminal Case vide Cr.No.76 of 2018 against the respondent/husband and the same is pending for investigation. Further, the petitioner had filed a Maintenance Case vide M.C.No.12 of 2021, on the file of the II Additional Judicial First Class Magistrate, Kakinada. The respondent/husband has filed H.M.O.P.No.9 of 2025, on the file of the Senior Civil Judge at Bobbili, under Section 9 of the Hindu Marriage Act, 1955, seeking for restitution of conjugal rights.

6. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha1 held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or

other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

7. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case law that in 2022 LiveLaw (SC) 627 matrimonial proceedings, the convenience of the wife has to be considered than that of the inconvenience of the husband. Therefore, this Court is of the considered view that there are grounds to consider the request of the petitioner/wife to withdraw H.M.O.P.No.9 of 2025, on the file of the Senior Civil Judge at Bobbili and transfer the same to the Senior Civil Judge, Kakinada.

8. In the result, the present petition is allowed and H.M.O.P.No.9 of 2025, on the file of the Senior Civil Judge at Bobbili, is hereby withdrawn and transferred to the Senior Civil Judge, Kakinada. The Senior Civil Judge at Bobbili, shall transmit the case record in H.M.O.P.No.9 of 2025 to the Senior Civil Judge, Kakinada, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of the order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

25.09.2025 SRT JUSTICE V.GOPALA KRISHNA RAO Date: